

STATE OF NEW YORK

5892--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. McDONALD -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to authorizing institutional dispensers to dispense controlled substances for use off premises in an emergency situation for at least three days

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 3342 of the public health law, as
2 amended by chapter 466 of the laws of 2024, is amended and a new subdi-
3 vision 2-a is added to read as follows:

4 2. An institutional dispenser may dispense controlled substances for
5 use off its premises only pursuant to a prescription, prepared and filed
6 in conformity with this title, provided, however, that, in an emergency
7 situation as defined by rule or regulation of the department, a practi-
8 tioner in a hospital without a full-time pharmacy may dispense
9 controlled substances to a patient in a hospital emergency room for use
10 off the premises of the institutional dispenser for a period not to
11 exceed twenty-four hours[~~-, unless the federal drug enforcement adminis-~~
12 ~~tration has authorized a longer time period for the purpose of initiat-~~
13 ~~ing maintenance treatment, detoxification treatment, or both~~].

14 2-a. A practitioner in any institutional dispenser may dispense
15 controlled substances as emergency treatment to a patient for use off
16 the premises of the institutional dispenser as authorized by the federal
17 drug enforcement administration for the purpose of initiating mainte-
18 nance treatment, detoxification treatment, or both.

19 § 2. This act shall take effect on the ninetieth day after it shall
20 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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